IN THE COURT OF APPEALS OF THE STATE OF KANSAS

No. 2022-125084-A

LEAGUE OF WOMEN VOTERS OF KANSAS, LOUD LIGHT, KANSAS APPLESEED, CENER FOR LAW AND JUSTICE, INC., and TOPEKA INDEPENDENT LIVING RESOURCE CENTER,
Plaintiffs-Appellants,

v.

SCOTT SCHWAB, in his official capacity as Secretary of State, and DEREK SCHMIDT, in his official capacity as Kansas Attorney General,
Defendants-Appellees.

Original Action No. 2021-CV-000299

DEFENDANTS-APPELLEES' MOTION TO DISMISS PLAINTIFFS-APPELLANTS' APPEAL FOR LACK OF JURISDICTION

Defendants-Appellees respectfully move this Court to dismiss this appeal for lack of jurisdiction. As set forth in more detail below, there is no final judgment in the case and Plaintiffs-Appellants' attempt to find a jurisdictional hook via the denial of a last-minute motion for a partial temporary injunction - which the district court denied as moot and did not even consider on the merits - offers them no refuge.

I. INTRODUCTION

Plaintiffs seek to appeal the district court's Memorandum Decision and Order, dated April 11, 2022, which dismissed their myriad constitutional challenges to two Kansas election integrity statutes: (i) a signature verification requirement for advance

mail ballots; and (ii) a restriction on the collection of advance mail ballots. But the district court's ruling did not create a final judgment in the case. Indeed, there remain multiple causes of action in the Amended Petition attacking statutory prohibitions related to the false representation of election officials. The district court denied Plaintiffs' motion for a temporary injunction on those latter provisions and they are now the subject of an appeal before this Court in Case No. 21-124378-A.

Regardless of whether the Court of Appeals affirms or reverses the district court's decision on the temporary injunction ruling in Case No. 21-124378-A, there still will be no final judgment on the claims at issue in that parallel appeal. One way or another, those causes of action will have to return to the district court for a ruling on the merits. The absence of a final judgment on all claims remaining in the case renders Plaintiffs' appeal of the recent dismissal order premature and beyond the jurisdiction of this Court.

Perhaps recognizing this jurisdictional impediment, Plaintiffs amended their notice of appeal to challenge the district court's denial of their new motion for a partial temporary injunction on the signature verification requirements for advance mail voting ballots, a motion they filed on April 11, 2022 - more than ten months after commencing their lawsuit and just four days before the district court dismissed their claims on the merits pursuant to K.S.A. 60-212(b)(6). But there is effectively nothing to appeal on the temporary injunction issue because, having dismissed Plaintiffs' constitutional challenges to those requirements on the merits, the district court simultaneously denied the motion for a partial temporary injunction as moot and expressly declined to consider the merits

of the motion. At most, then, Plaintiffs' latest appeal is jurisdictionally confined to attacking the district court's determination that the outright dismissal (on the merits) of the claims at issue in the temporary injunction motion rendered such motion moot, a conclusion that no reasonable person could possibly contest. Accordingly, this appeal must either be dismissed in whole or summarily affirmed.

II. PROCEDURAL HISTORY

1. Plaintiffs originally filed their Petition in this lawsuit in Shawnee County District Court on June 1, 2021. They asserted fourteen claims, attacking (on a vast array of different constitutional theories) four discrete election integrity statutes passed by the Legislature in 2021. Specifically, they challenged:

a. New criminal provisions related to the false representation of election officials (H.B. 2183, Â§ 3(a)(2), (3)) (codified at K.S.A. 25-2438(a)(2), (3));

b. The signature verification requirement for advance mail voting ballots (H.B. 2183, Â§ 5(h)) (codified at K.S.A. 25-1124(h));

c. Restrictions on the collection of advance mail voting ballots (H.B. 2183, Â§ 2) (codified at K.S.A. 25-2437); and

d. Prohibitions on persons/entities not residing in Kansas from sending advance mail ballot applications to Kansas registered voters (H.B. 2332, Â§ 3(1)(1)) (codified at K.S.A. 25-1122(!)(1)).

2. On June 18, 2021, Plaintiffs filed a motion for a partial temporary injunction in connection with their causes of action related to the false representation of an election

official statute. Plaintiffs did not seek temporary injunctive relief on any other statute in their Petition.

3. Following a hearing, the district court denied Plaintiffs' motion for a partial temporary injunction on September 16, 2021. *See* Ex. A. (Although Defendants also had a pending motion to dismiss at the time of the district court's ruling, the court expressly declined to consider the motion to dismiss when adjudicating the temporary injunction motion. *Id.* at 1.)

4. Plaintiffs appealed the denial of their partial temporary injunction motion to the Court of Appeals. *See* Case No. 21-124378-A. This case has been fully briefed and was argued before a three-judge panel on April 7, 2022. It is now awaiting a decision from the panel.

5. On March 2, 2022, Plaintiffs voluntarily dismissed their claims related to the restrictions in H.B. 2332, Â§ 3(1)(1) on non-Kansas residents sending advance mail ballot applications to Kansas voters. *See* Ex. B.

6. On April, 7, 2022, Plaintiffs filed a second motion for a partial temporary injunction, this time challenging the signature verification requirement for advance mail voting ballots.

7. Four days later, on April 11, 2022, the district court granted Defendants' motion to dismiss Plaintiffs' causes of action involving signature verification requirements for advance mail voting ballots and restrictions on the collection of advance mail voting

ballots.[1] *See* Ex. C. In that Memorandum Decision and Order, the district noted: "Given the Court's dismissal of Plaintiffs' challenge to the [signature verification requirements] for failure to state a claim, the Plaintiffs' motion for a partial temporary injunction is moot and will not be considered." *Id.* at 24.

8. In her dismissal Order, the court also specifically declined to address the merits of Plaintiffs' claims challenging H.B. 2183, Â§ 3 (which she labeled the "False Representation Provision" or "FRP"). In particular, she observed:

> The merits of Plaintiffs' FRP claim is the subject of a pending appeal of this Court's denial of a preliminary injunction regarding enforcement of the FRP. Because the merits of the FRP challenge are currently under consideration by the Kansas Court of Appeals, this Court has no jurisdiction to consider Defendants' motion to dismiss the FRP claim. Thus, that part of Defendants' motion will not be addressed here. *See Hernandez v. Pistotnik*, 60 Kan. App. 2d 393, 405, 494 P.3d 203 (2021) (trial court loses jurisdiction to modify a judgment once appeal is docketed, even while trial court may continue to address "matters independent of the judgment."). Ex. C. at 6.

9. On April 12, 2022, Plaintiffs filed a notice of appeal of the district court's dismissal of their various causes of action involving signature verification requirements for advance mail voting ballots and restrictions on advance mail voting ballot collection. *See* Ex. D.

10. On April 22, 2022, Plaintiffs amended their notice of appeal to additionally appeal the district court's decision deny as moot (and not address the merits) their motion for a partial temporary injunction on their various causes of action related to the signature verification requirements. *See* Ex. E.

[1]Defendants had filed a motion to dismiss Plaintiffs' Amended Petition on August 23, 2021.

III. ARGUMENT

This Court has no jurisdiction over Plaintiffs' appeal due to the absence of a final judgment on all claims in the case. "Kansas appellate courts may exercise jurisdiction only under circumstances allowed by statute; the appellate courts do not have discretionary power to entertain appeals from all district court orders." *Flores Rentals, L.L.C. v. Flores*, 283 Kan. 476, 481, 153 P.3d 523 (2007). In a Chapter 60 action such as the one in the case at bar, K.S.A. 60-2102 dictates that appellate jurisdiction generally extends only to the following:

> (1) An order that discharges, vacates or modifies a provisional remedy.
>
> (2) An order that grants, continues, modifies, refuses or dissolves an injunction, or an order that grants or refuses relief in the form of mandamus, quo warranto or habeas corpus.
>
> (3) An order that appoints a receiver or refuses to wind up a receivership or to take steps to accomplish the purposes thereof, such as directing sales or other disposal of property, or an order involving the tax or revenue laws, the title to real estate, the constitution of this state or the constitution, laws or treaties of the United States.
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> (4) A final decision in any action, except in an action where a direct appeal to the supreme court is required by law. In any appeal or cross appeal from a final decision, any act or ruling from the beginning of the proceedings shall be reviewable.

A. This Court Has No Jurisdiction Over Plaintiffs' Appeal of the Dismissal of their Claims Pursuant to KS.A. 60-212(b)(6) Because There Has Been No Final Judgment.

There is no serious question that the only statutory avenue of appeal available to the Plaintiffs from the district court's April 11, 2022 dismissal of their constitutional attacks on the signature verification requirements for advance mail voting ballots and restrictions on the collection of advance mail voting ballots is K.S.A. 60-2102(a)(4). In

other words, Plaintiffs may invoke the Court of Appeals' jurisdiction as a matter of right solely from a "final decision in [the] action." A "final decision" is one that "disposes of the entire merits of a case and leaves no further questions or possibilities for future directions or actions by the lower court." *Kaelter v. Sokol*, 301 Kan. 247, 249-50, 340 P.3d 1210 (2015). But there has been no "final decision" in this lawsuit. Indeed, Plaintiffs' claims challenging the FRP provisions in K.S.A. 25-2438(a)(2) and (3) remain a live issue.

It is true that the district court denied Plaintiffs' motion for a temporary injunction on the FRP issue, and Plaintiffs have appealed that ruling to the Court of Appeals, where it is now pending. A ruling on a temporary injunction, however, is not a ruling on the final merits of a claim. *Union Terminal R.R. Co. v. Bd. of R.R. Comm'rs.*, 54 Kan. 352, 38 P. 290, 292 (1894); *Wichita Wire, Inc. v. Lenox*, 11 Kan. App. 2d 459, 464, 726 P.2d 287 (1986); *accord Univ. of Tex. v. Camenisch*, 451 U.S. 390, 396 (1981). No matter whether the Court of Appeals affirms or reverses the district court's decision on Plaintiffs' motion for a temporary injunction regarding the FRP, therefore, the claims at issue in that appeal will necessarily have to return to the district for final adjudication on the merits.

The statutory directive that appeals may be pursued only after all issues in the case have been ruled upon is rooted in the desire to avoid piecemeal litigation and thereby limit unnecessary litigation delays and costs. *See Honeycutt ex rel. Phillips v. City of Wichita*, 251 Kan. 451, 459, 836 P.2d 1128 (1992) ("The purpose of requiring a final decision prior to an appeal is to prevent intermediate and piecemeal appeals that extend

and prolong the litigation and add cost to the litigation."). Were the rule otherwise, an "appellate yo-yo" could appear. As the Kansas Supreme Court noted in rejecting such a practice:

> A trial court order, however minor, would be appealed and all trial court proceedings would be stayed until the appeal's legitimacy eventually was ruled upon by the appellate court. Even if the appeal of the order were dismissed for lack of jurisdiction, another trial court order could be appealed and the trial court proceedings would again be stayed until ruled upon by the appellate court, and so on. *Harsch v. Miller*, 288 Kan. 280, 287, 200 P.3d 467 (2009).

The manner in which Plaintiffs have attempted to slice and dice this litigation presents the very type of concerns that K.S.A. 60-2102(a)(4) was designed to minimize. Indeed, there is a virtual certainty that whichever party loses on the merits on the RFP claims on remand will appeal once again to this Court. Allowing the appeal now before the Court to proceed, therefore, would guarantee a third appeal. This outcome is foreclosed by the rules of civil procedure and should not be countenanced.

Plaintiffs will eventually have their opportunity to appeal the district court's merits-based rulings on the causes of action at issue in this premature appeal. But such an appeal will have to await the district court's final adjudication of the merits of Plaintiffs' RFP-related claims. For now, the appeal of those dismissed claims must itself be dismissed for lack of jurisdiction.

B. Plaintiffs' Appeal of the District Court's Denial of Their Motion for a Partial Temporary Injunction on the Signature Verification Requirements Must Be Dismissed or Summarily Affirmed.

Plaintiffs are similarly precluded from appealing the substance of the district court's ruling on their challenges to the State's signature verification requirements by invoking the rule in K.S.A. 60-2102(a)(2) allowing for immediate appeals from the grant

or denial of a temporary injunction. Indeed, the district court expressly declined to consider this motion and denied it as moot (just four days after it was filed and long before Defendants even had the opportunity to respond) in light of her outright dismissal under K.S.A. 60-212(b)(6) of the very same claims at issue therein. "When a district court proceeds to adjudicate the merits of the underlying action and enters a final judgment, an appeal from the denial of a preliminary injunction is moot because a preliminary injunction is by its nature a temporary measure intended to furnish provisional protection while awaiting a final judgment on the merits." *Pinson v. Pacheco*, 424 F. App'x 749, 754 (10th Cir. 2011).

In any event, given the absence of a final judgement in this case, the only ruling that Plaintiffs could conceivably challenge in this appeal is the district court's determination that the motion for a temporary injunction on the signature verification claims was mooted by the dismissal of those same causes of action on the merits. And that was undeniably the case. In other words, there is absolutely nothing of substance in this appeal at this time. Accordingly, Plaintiffs' appeal of the denial of their last-minute motion for a temporary injunction must either be dismissed for lack of jurisdiction (as moot) or else summarily affirmed.

Respectfully Submitted,

By: /s/ Bradley J. Schlozman
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CERTIFICATE OF SERVICE

I certify that on this 27th day of April, 2022, I electronically filed the foregoing "Defendants-Appellees' Motion to Dismiss Plaintiffs-Appellants' Appeal for Lack of Jurisdiction" with the Clerk of the Court pursuant to Kan. Sup. Ct. R. 1.11(b), which in turn caused electronic notifications of such filing to be sent to all counsel of record.

By: /s/ Bradley J. Schlozman
Bradley J. Schlozman (Bar# 17621)
Scott R. Schillings (Bar# 16150)